

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
VIZANDRI DELACRUZ, JOSE DELEON and
MANUEL PARA,

Plaintiffs,

-against-

COMPLAINT

Jury Trial

THE CITY OF NEW YORK, ASIM SHEIKH,
ELVIN PICHARDO, PETER JOHNSON, TERRENCE
BLUMENBERG, ELVIS DELACRUZ,
JOHN AND JANE DOES 1-5

Defendants.
-----X

Plaintiffs VIZANDRI DELACRUZ, JOSE DELEON and MANUEL
PARA (hereinafter "Plaintiff") by and through their attorneys, Vik Pawar, Esq., and
Robert Blossner, Esq. respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages
and attorney's fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of their civil
rights, as secured by statutes and the Constitution of the State of New York and the
United States.

JURISDICTION

2. The action is brought pursuant to 42 U.S.C. §§1981, 1983, and 1988, and
the Fourth and Fourteenth Amendments to the United States and New York
Constitutions.

3. Jurisdiction is found upon 28 U.S.C. §§1331 and 1343.

VENUE

4. Venue is properly laid in the Southern District of New York under 28 U.S.C. § 1391(b), in that it is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in the matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

7. Plaintiffs are citizens of the United States, and at all relevant time resident in the County of New York, State of New York.

8. Defendant City of New York is a municipality formed within the laws and constitution of the State of New York.

9. The individual Defendants are officers with the 34th precinct of the NYPD at the time when plaintiff's claims arose. They are sued in their individual, supervisory and official capacities.

FACTS

10. On October 25, 2014, at approximately 12:30 pm, plaintiff DeLacruz (a minor at the time of the incident) was standing in the vicinity of Arden Street in the County of New York, when she was arrested by defendant Sheikh based on an alleged observation by defendant Pichardo.

11. DeLacruz was violently yanked from the sidewalk, thrown against the ground and had her hands tightly handcuffed which restricted blood-flow and cause her unnecessary pain.

12. DeLacruz was brought to the precinct and held for more than 7 hours before being released with a desk appearance ticket.

13. Delacruz was forced to appear in court to address these false allegations.

14. On October 25, 2014, around 12:30 pm, plaintiff DeLeon was standing in the vicinity of Arden Street in the County of New York, when he was arrested for possession of marijuana by defendant Sheikh based on alleged observations made by defendants DeLacruz and Pichardo.

15. DeLeon was falsely charged with criminal sale and possession of marijuana.

16. DeLeon was transported to the 34th precinct where he was subjected to unlawful and unnecessary strip-search which included anal cavity search.

17. DeLeon was then transported to central booking where he spent more than 40 hours in jail before he was released.

18. DeLeon was forced to appear in criminal court many times for these false charges.

19. On March 12, 2015, the false charges against him were dismissed on the motion by the DA's office.

20. On July 27, 2014, at approximately 8 pm, plaintiff Parra was in the vicinity of Arden Street in the County of New York when he was arrested by defendant Johnson based on an alleged observation by defendant Blumenberg.

21. Parra was transported to the 34th precinct where he was subjected to unlawful and unnecessary strip-search which included anal cavity search.

17. Parra was then transported to central booking where he spent more than 40 hours in jail before he was released.

18. Parra was forced to appear in criminal court many times for these false charges.

19. On May 13, 2015, the false charges against him were dismissed on the motion by the DA's office.

AS AND FOR A FIRST CAUSE OF ACTION

(Unlawful search/Excessive use of force/false arrest-Fourth Amendment)

20. Plaintiffs repeat, reiterate, and reallege each and every allegation in the foregoing paragraphs with the same force and effect as if fully set forth herein.

21. Defendants had no reason to search and arrest the plaintiffs.

22. Yet, all Plaintiffs were yanked, thrown and arrested on false charges on the foregoing dates.

23. Defendants assaulted them and falsely arrested them on fabricated charges and plaintiffs Deleon and Parra were subjected to unnecessary strip-search.

24. As a result of the aforementioned conduct of Defendants, Plaintiffs' constitutional right to be under the Fourth and Fourteenth Amendments were violated.

AS AND FOR A SECOND CAUSE OF ACTION

(Deprivation of Rights under 14th Amendment-Due Process/Mal.Pro.)

25. Plaintiffs repeat, reiterate, and reallege each and every allegation in the foregoing paragraphs with the same force and effect as if fully set forth herein.

26. The Defendants' conduct herein was an abuse of executive power so

clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment. The actions by Defendants deprived the substantive and procedural due process afforded to Plaintiff and was in violation of Plaintiff's constitutional rights under the Fourth and Fourteenth Amendments.

27. Defendants initiated false and baseless proceedings against plaintiffs.

28. Defendants knew that if they forwarded the false and unreliable information to the DA's office, plaintiffs would be prosecuted.

29. Yet defendants never retracted their false paperwork and continued the prosecution based on malice. Defendants never showed for court to testify on their criminal court complaints.

30. The proceedings were terminated in plaintiffs' favor.

31. As a result of the foregoing, Plaintiffs were deprived of their rights secured under the Constitution.

AS AND FOR A THIRD CAUSE OF ACTION

(Denial of Right to Fair Trial)

32. Plaintiffs repeat, reiterate, and reallege each and every allegation in the foregoing paragraphs with the same force and effect as if fully set forth herein.

33. Defendants had no probable cause to arrest any of the plaintiffs.

34. Defendants relied on false information provided by each other.

35. Defendants falsely testified in the criminal court complaint that they had observed plaintiffs committing a crime.

36. Defendants observations were illusory and not based on actual facts but rather fabricated version of the events.

37. Yet they fabricated the charges against both plaintiffs, detained and strip-searched them and forwarded the fabricated information to the DA's office.

38. The DA's office realizing the untrustworthiness of the charges against plaintiffs in both incidents, declined to prosecute.

39. The false fabricated charge denied plaintiffs the right to a fair trial or a hearing.

40. As a result of defendants' conduct, plaintiffs suffered constitutional injuries.

AS AND FOR A FOURTH CAUSE OF ACTION
(Monell/Municipal and Supervisory Liability)

41. Plaintiffs repeat, reiterate, and reallege each and every allegation in the foregoing paragraphs with the same force and effect as if fully set forth herein.

42. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

43. The aforementioned customs, usages, and practices of the City and Police Department included, but were not limited to, arresting, assaulting individuals suspected of crimes without due process. In addition, the City and Police Department engaged in a custom or practice of inadequate screening, hiring, retaining, training, disciplining and supervising its employees, which was the moving force behind the violation of Plaintiffs' rights as described herein.

44. In addition, the Defendant's superior officers whose duty it was to review and screen all arrests for propriety upon presentation by the officer seeking to make an arrest routinely ratified such arrests without questioning the facts underlying same.

45. Furthermore, the individual defendants have a practice and custom of ignoring the mandates of the patrol guide, which requires them to prepare several forms before, and after an arrest is made. As a result of the failure of the City and Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual Defendants, Defendants have tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein

46. Furthermore, individual defendants from the 34th precinct routinely arrest minorities without probable cause. However, supervisory defendants turn a blind eye to this false information, fail to discipline or train the individual defendants and the false arrests and malicious prosecutions continue.

47. In addition, defendants routinely file false charges against innocent individuals to justify their need to make quotas or overtime.

48. The foregoing customs and practices have resulted in multiple judgments against the City involving similar facts and finding of Monell liability. The foregoing were the direct and proximate cause and the moving force of the constitutional violations suffered by Plaintiffs as alleged herein.

AS AND FOR A FIFTH CAUSE OF ACTION
(42 U.S.C. 1981)

49. Plaintiffs repeat, reiterate, and reallege each and every allegation in the foregoing paragraphs with the same force and effect as if fully set forth herein.

50. Defendants targeted Plaintiffs and falsely accused them of crimes because of their race, ethnicity and color.

51. Defendants intentionally discriminated against plaintiffs and in so doing denied that the full and equal benefits and equal protection under the laws.

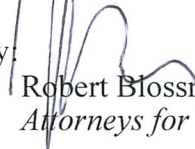
52. As a result of these actions, Plaintiffs suffered injuries.

WHEREFORE, the Plaintiffs request that this Court:

- a. Award compensatory damages to each Plaintiff against the Defendants, jointly and severally, in the amount of ONE HUNDRED THOUSAND DOLLARS for each cause of action;
- b. Award the costs of this action to the Plaintiff.
- c. Award reasonable attorneys fees to the Plaintiff under 42 U.S.C. Section 1988 and/or any other applicable laws.
- d. Award punitive damages in an amount determined by the jury; exceeding the jurisdictional limits of all lower courts.
- e. Award such other and further relief as this Court may deem appropriate.

Dated: New York, New York
September 16, 2015

PAWAR LAW GROUP P.C.
20 Vesey Street, Suite 1210
New York, New York 10007
(212) 571-0805

By: 
Robert Blossner (RB0526)
Attorneys for Plaintiff